

NOTICE FOR HEARING OF APPLICATION

In the High Court at Calcutta Ordinary Original Civil Jurisdiction

In the matter of:
Arbitration & Conciliation Act 1996

And

In the matter of: Section 9 of the said
Act

And

In the matter of:
An Agreement of Lease bearing
No. 2 dated 10th January 1999
entered into between the parties

And

In the matter of:
21st Century Finance Limited, a company
registered under the Companies Act 1956
having its Corporate Office at 5 N.S.
Road, Calcutta 700 001 within the said
jurisdiction

Petitioner

versus

Duncans Tea Co. Limited, a Company
registered under the Companies Act 1956
having its registered office at 6 A.T, Road,
Dibrugarh 1, Assam

S. Bardhan, working for gain at 6 A.T.
Road, Dibrugarh 1, Assam

K. Barua, working for gain at 6 A.T.
Road, Dibrugarh 1, Assam all outside the
said jurisdiction

Respondents

To

Duncans Tea Co. Ltd.

S. Bardhan

K. Barua

All of 6 A.T. Road Dibrugarh 1, Assam

Dear Sirs

PLEASE TAKE NOTICE THAT on.....the.....day of 2005 at the hour of 10-30
o'clock, in the forenoon or so soon thereafter as Counsel can be heard an application will be made
on behalf of the petitioner above-named before the Hon'ble Judge taking Arbitration and
Conciliation Act 1996 matters for the following orders:

(a) A Receiver be appointed over the Tea Processing Machinery with attachments and accessories
described in the Agreement of Lease with a direction to take possession of the same with the
help of an Agent, if necessary;

(b) Injunction restraining the respondents, their servants, and agents from dealing with,
disposing of, alienating and/or encumbering the machinery mentioned in the Schedule to the

Agreement;

(c) Receiver be authorised to take police help and officer-in-charge of the local Police Station in Dibrugarh, Assam do render such assistance to the Receiver or his agent as may be required;

(d) Respondents be directed to show cause as to why they should not be asked to furnish security in favour of the Registrar, Original Side of this Hon'ble Court to the extent of Rs. 90 lakhs within 10 days from the date of order;

(e) In default of showing cause or showing insufficient cause the respondents be directed to furnish securities for Rs. 90 lakhs within 15 days and in default the entire assets and properties of the respondents be attached;

(f) *Ad interim* orders in terms of prayers above;

(g) Costs of and incidentals to this application be paid by the respondents;

(h) Further orders be made and/or directions be given as to this Hon'ble Court may deem fit and proper.

Dated this.....day of 2005

Yours faithfully Advocate-on-Record

Grounds: Petition of the petitioner verified by an affidavit of S. Ghose, affirmed on.....day of 2005 and the records and proceedings of the above matter.

PLEASE TAKE FURTHER NOTICE that this application being moved on before the Hon'ble Justice when His Lordship was pleased to pass the following order:

"Leave is given under Clause 12 of the Letters Patent.

Liberty to serve by Courier, Returnable on.....

This matter will appear as New Motion on.....Parties shall act on a xerox of the signed copy of the minutes of this order on the usual undertaking."

Advocate-on-Record
of the petitioner
High Court O.S. Calcutta

Sd/-
Asstt Registrar